Ashok Gehlot's insistence that a rising graph of FIRs doesn't imply a rise in crimes as many FIRs turn out to be based on false complaints. Speaking at a police event in September, Gehlot had claimed "56 per cent of rape cases are false" and directed the DGP to take legal action against those who lodge such cases. The police has also initiated prosecution against complainants in a few dowry-related cases the courts held to be false. Some cases are held up as exemplars of a trend: in Ladnu, Nagaur district, a gang rape accusation turned out to be foisted on a man by his father-in-law, angry over the refusal of an exchange marriage; in Jahazpur, Bhilwara, an elopement brought the charge on a 17-year-old's groom of choice.

Ayyub Khan, registrar-cum-OSD with the commission, says the police and judges can decide whether to proceed against such false complainants—under sections 182 (furnishing false information to a public official) and 211 (making a false allegation of offence) of the IPC, conviction can lead to imprisonment of up to

**"NOWHERE ELSE IN INDIA AND NEVER BEFORE IN RAJASTHAN HAS A WOMEN'S COMMISSION TAKEN SUCH A STAND," SAYS KAVITA SRIVASTAVA OF PUCL-RAJASTHAN**

seven years. "We can't order prosecution, but want to discourage false complaints so we can focus on genuine cases," Khan says.

The question is whether it holds the potential to discourage *genuine* complainants. The commission has initiated a process where complaints are first sent to the district collector and superintendent of police (SP), and the complainant is advised to contact those officers. If the police find the complaint to be genuine, an FIR is lodged. If not, the commission informs the complainant and asks the SP concerned to review the investigation. "It is only if the SP-level officer again finds the case to be false that we advise the police to act against the complainant for acting to harass the other party," says Riyaz.

Prima facie, its critics say, the process seems to presume, almost as the default, that an accusation of a gender-related crime could be false. And since the number of bureaucratic hoops one has to negotiate can seem forbidding to a genuine complainant, it's moot whether the solution is worse than the problem. ■



WEST BENGAL

# DIDI TAKES RO

By Romita Datta



DEBAJYOTI CHAKRABORTY

At no time was the Trinamool Congress's stranglehold over West Bengal politics better demonstrated than at the 2018 panchayat polls—it won around 90 per cent of the seats, of which 34 per cent were uncontested. Much of it was attributed to alleged violence and intimidatory tactics against opposition parties. But, with the next panchayat polls earmarked for early 2023, the TMC finds its unquestioned ground-level supremacy severely eroded. A spate of crimes in which TMC members were allegedly involved has led the widespread perception of the state being gripped by lawlessness; the alleged teachers' recruitment scam and the arrest of former minister Partha Chatterjee has further deepened the distrust and dismay felt about the TMC's governance. Some remedy is desperately called for. On November 10, at an administrative meeting in Ranaghat in Nadia district, Chief Minister Mamata Banerjee asked public representatives and block development officers to cover even the remotest of villages on humble cycles and rickshaws, not stick to SUVs on well-travelled roads. With elected TMC panchayat officials also accused of high-handedness, it's a hard road to redemption.

Indeed, battered and broken roads can well stand in as a metaphor for all the real problems people face, like those related to drinking water, healthcare and electricity—the chief themes that will influence voting to the three-tier panchayat system comprising zilla parishads, panchayat samitis and gram panchayats. "I request you to take roads seriously. Otherwise you'll regret it later," Mamata told the officials admonishingly.

In a way, the TMC has been forced to hit the roads in earnest. Taking advantage of the ruling party's discomfiture in recent months, opposition parties have gone to the grassroots to give shape to popular grievances. The Left, in particular, has been sweating it out for the past year, exhorting people to hold the government accountable. For instance, after the construction of a road in Bardhaman district's Galsi was left unfinished, villagers held a demonstration outside the panchayat office. Already, as part of the *Chor dhoro, jail bhoro* (catch the thieves, throw them in jails) programme of the Left launched in August,